MONTANA

DATA COMPANY

# SECTION 51 PAIA MANUAL FOR MONTANA DATA COMPANY (PTY) LTD

MONTANA
DATA COMPANY

# CONTENTS

CONTACT INFORMATION FOR THE INFORMATION OFFICER AND DEPUTY INFORMATION OFFICER ..... 2
AS REFERRED TO IN SECTION 10: SECTION 51(1)(b) ..... 2
THE LATEST NOTICE IN TERMS OF SECTION 52(2) (IF ANY): ..... 2
LIST OF RECORDS AND INFORMATION HELD AT OUR PHYSICAL ADDRESS BY MONTANA DATA COMPANY ..... 2
1.1 LIST OF RECORDS AND INFORMATION ..... 2
1.2 Companies Act Records, ACTS and Statutory Compliance Records ..... 3
1.3 PERSONNEL DOCUMENTS AND RECORDS ..... 3
1.4 FINANCIAL RECORDS ..... 3
1.5 CLIENT DATA AND 3RD PARTY DATA ..... 4
DETAILS ON HOW TO MAKE A REQUEST FOR ACCESS - SECTION 51(e) ..... 4



Initial

## CONTACT INFORMATION FOR THE INFORMATION OFFICER AND DEPUTY INFORMATION OFFICER

**Name of Information Officer:**

Mr. Elmar Schorndorfer

**Name of Deputy Information Officer:**

Mr. John Stallard

**Postal Address of head of Montana Data Company**

Suite 158, Willowbridge Centre, Tyger Valley, Cape Town, 7530

**Physical Address of head of Montana Data Company:**

Suite 158, Willowbridge Centre, Tyger Valley, Cape Town, 7530

**Contact number:**

+27 87 188 3843

**Email address of head of Montana Data Company**:

elmarsc@montanadc.com

## AS REFERRED TO IN SECTION 10: SECTION 51(1)(b)

Montana Data Company uses personal information in different ways in its day-to-day normal business operations. The data collected by Montana Data Company has been classified into different data segments. The purpose is to categorize the personal and other data into easily identifiable categories of data.

## THE LATEST NOTICE IN TERMS OF SECTION 52(2) (IF ANY):

At this stage, no notice(s) has/have been published on the categories of records that are automatically available without a person having to request access in terms of PAIA.

## LIST OF RECORDS AND INFORMATION HELD AT OUR PHYSICAL ADDRESS BY MONTANA DATA COMPANY

### 1.1 LIST OF RECORDS AND INFORMATION

The information held by Montana Data Company has been divided into different categories grouped into various subjects, each of which describes a sub-set of data information collected and held. The categories of information are not exhaustive but are merely meant to give a broad indication of the information subject and categories held by Montana Data Company, without specification. A category may therefore contain sub-categories and sub-sets of information, which may not be specifically listed.



Initial

## 1.2 Companies Act Records, ACTS and Statutory Compliance Records

- Documents of incorporation (Founding Documents)
- Memorandum and Articles of Association
- Minutes of Board of Directors meetings
- Records relating to the appointment of directors/ auditor/ secretary/ public officer and other officers
- Share Register and other statutory registers
- Basic Conditions of Employment 75 of 1997
- Companies Act 71 of 2008
- Compensation for Occupational Injuries and Health Diseases Act 130 of 1993
- Consumer Protection Act 68 of 2008
- Employment Equity Act 55 of 1998
- Income Tax Act 95 of 1967
- Labour Relations Act 66 of 1995
- Occupational Health and Safety Act 85 of 1993
- Promotion of Access to Information Act 2 of 2000
- Unemployment Insurance Act 63 of 2001
- Value Added Tax Act 89 of 1991
- Statutory Returns and Statutory Records
- Licenses (categories)
- Minutes of Management Meetings
- Minutes of Staff Meetings

## 1.3 PERSONNEL DOCUMENTS AND RECORDS

- Employment contracts
- Employment Equity Plan
- Disciplinary records
- Salary records
- SETA records
- Disciplinary code
- Leave records
- Training records
- Training Manuals
- Employee Identity Numbers
- Employee addresses
- Employee names
- Staff administration (employee records and information)
- Staff includes potential and existing staff
- General Correspondence
- Information relating to Health and Safety Regulations
- Performance Appraisals
- Personnel Guidelines, Policies and Procedures
- Remuneration Records and Policies
- Skills Requirements
- Staff Recruitment Policies
- Training Records
- Attendance registers
- Correspondence

## 1.4 FINANCIAL RECORDS

- Annual Financial Statements
- Tax Returns
- Accounting Records and financial dealings



Initial

- Banking Records
- Bank Statements
- Paid Cheques
- Electronic banking records
- Asset Register
- Rental Agreements
- Invoices
- Customer Details-Vat Numbers-delivery addresses-email addresses-client company details
- Budgets
- Management Accounts
- Purchasing and Order Information
- Stock Records
- Tax Records (company and employee)
- Client and Customer Registry
- Contracts
- Information relating to Work-In-Progress

## 1.5 CLIENT DATA AND 3RD PARTY DATA

- Copies of compliance certification
- Copies of Insurance and Public Liability Insurances
- Client company/trading details-invoices with vat numbers, company registration details etc.
- Client and 3rd party professional qualifications and professional body registration details
- Supplier contracts and supplier contact details
- Customer contracts and customer details
- Details regarding the rendering of services according to instructions given by clients
- Compliance with tax laws of third parties
- Marketing and Future Strategies
- Marketing Records
- Production Records
- Sales Records
- Suppliers Registry
- Insurance Information
- Internal Audit Records
- IT Policies and Procedures
- Network Diagrams
- User Manuals

## DETAILS ON HOW TO MAKE A REQUEST FOR ACCESS - SECTION 51(e)

The requester must complete Form 2 and Form 3and submit these forms together with a request fee, where necessary, to the Information Officer (Montana Data Company) at the provided physical address, P.O. Box number or email address.

The forms must:

- provide sufficient particulars to enable the Information Officer of the private body to identify the record/s requested and to identify the requester;
- indicate which form of access is required;
- specify a postal address or fax number or email address of the request in the Republic;
- identify the right that the requester is seeking to exercise or protect;



Initial

- provide an explanation of why the requested record is required for the exercise or protection of that right.

In addition to a written reply, if the requester wishes to be informed of the decision on the request in any other manner, the requester is to state that manner or format and the necessary particulars to be informed of in any other manner. If the request is made on behalf of another person, the requester is to submit proof of capacity in which the requester is making the request, to the reasonable satisfaction of the head of the private body, as described above.

| | |
|---|---|
| Information Officer | 15 April 2024<br>Date |



Initial